

sent facts which, admitted as true for purposes of a motion to dismiss, seem to sustain petitioners' claim that Mr. Monroe's detention—as contrasted with the night-time intrusion into the Monroe apartment—was “under color” of state authority. Under the few relevant Illinois decisions it is impossible to say with certainty that a detention *incommunicado* for ten hours is unlawful *per se*,⁹¹ or that the courts of that State would hold that the lawless circumstances surrounding Mr. Monroe's arrest made his subsequent confinement illegal. On this record, then, petitioners' complaint suffices to raise the narrow issue of whether the detention *incommunicado*, considered alone, violates due process.⁹²

Since the majority's disposition of the case causes the Court not to reach that constitutional issue, it is neither necessary nor appropriate to discuss it here.

⁹¹ Compare *People v. Frugoli*, 334 Ill. 324, 166 N. E. 129 (1929), and *Fulford v. O'Connor*, 3 Ill. 2d 490, 121 N. E. 2d 767 (1954), with *People v. Kelly*, 404 Ill. 281, 89 N. E. 2d 27 (1949).

⁹² In considering the detention of Mr. Monroe as isolable from the invasion of the Monroe home for purposes of applying § 1979, one does not ignore that in its treatment of coerced-confession cases and deprivation-of-counsel cases coming here from state courts, this Court has looked to the whole sequence of activity by state authorities pertinent to the prosecution of a criminal defendant. *Malinski v. New York*, 324 U. S. 401, 412 (concurring opinion joined in, and made a majority view, at 438); *Watts v. Indiana*, 338 U. S. 49; *Turner v. Pennsylvania*, 338 U. S. 62; *Harris v. South Carolina*, 338 U. S. 68; *Gibbs v. Burke*, 337 U. S. 773. But these cases differ from the one at bar precisely in the fact that they do come here after the sustaining of a criminal conviction by the highest court of a State competent to act in the matter. In all such cases the processes of law administration of a State have rendered the final judgment of state law, and the federal question presented is whether the conviction has, in light of the totality of the events leading to that conviction, violated due process. The question in the instant case is the much narrower one whether petitioners have alleged conduct “under color” of state authority which deprives them of a Fourteenth Amendment right, and thus brought respondents' conduct within the specific requirements of the statute for initiating litigation in a Federal District Court.